PATENTABILITY REQUIREMENTS

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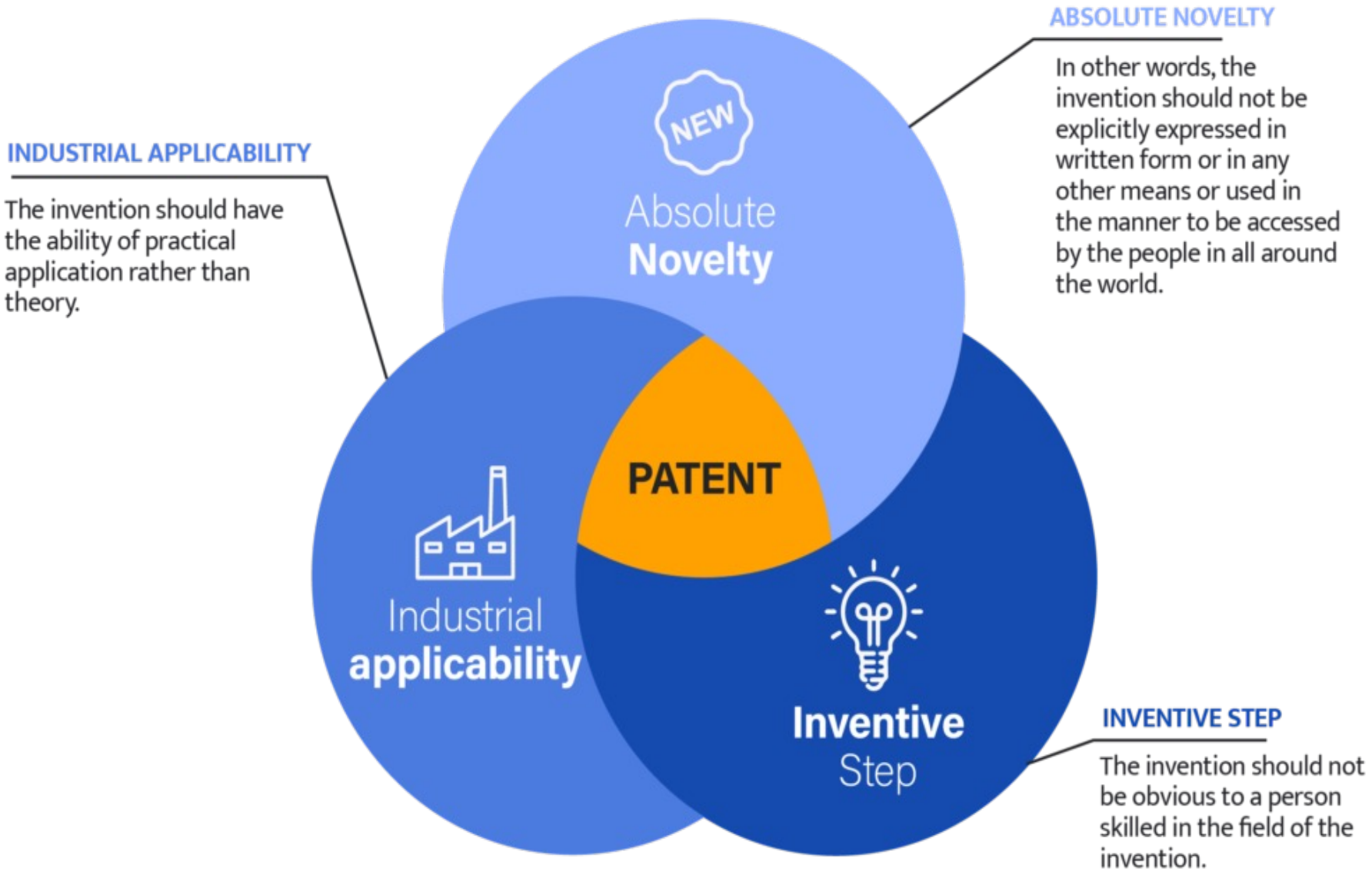
Patentability Requirements

Sec. 21, IP Code & Rule 200, IRR

A **PATENT** is an exclusive right (for 20 years) granted for an invention, which is a product or a process that provides, in general, a new way of doing something, or offers a new technical solution to a problem.



PATENTABLE INVENTIONS Requirement

NOVELTY

The technical solution must be “new” or first of its kind in the world.

An invention shall **NOT** be considered **NEW** if it forms part of a **PRIOR ART**.

Prior Art - everything made available to the public by means of,

written disclosure

oral disclosure

prior use

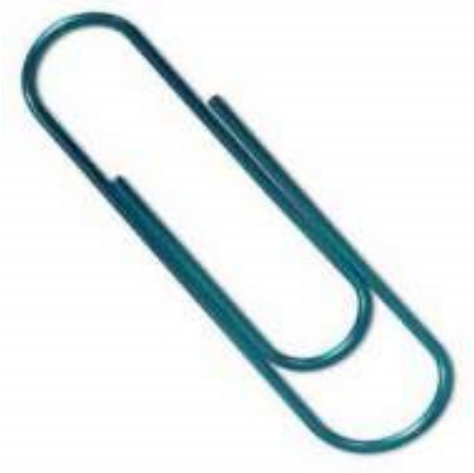
or any other way

before the filing date of the application.

Grace Period or Non-Prejudicial Disclosure

- If you have already disclosed or published your inventions in a journal, demonstrated, sell, or discussed your invention in public, you can still file a patent **within one (1) year** from the date of disclosure or publication

Exercise 1: What does “NEW” or “novel” mean?



KNOWN INVENTION
PRIOR ART

NEW
Application

✓ The NEW Application is NOVEL!

Fig. 1

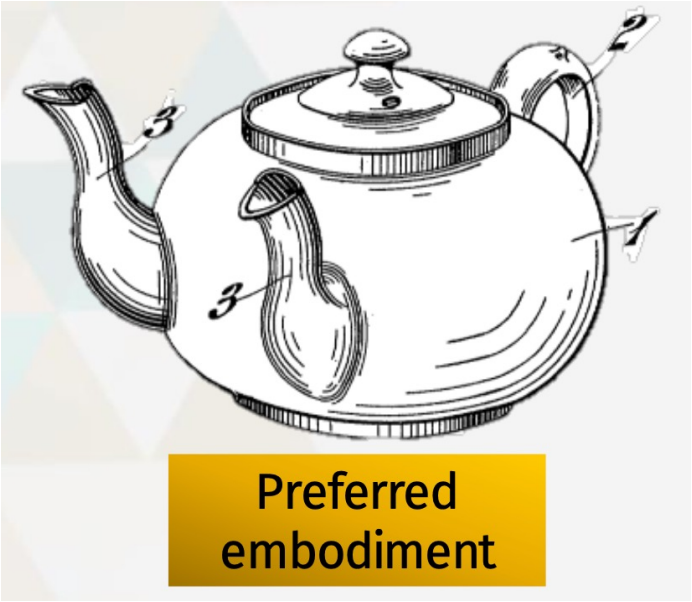


Fig. 2

Claim 1
A pouring vessel consisting essentially of
(a) a compartment for liquids (1),
(b) a handle (2),
(c) a lid, and
(d) two spouts (3) extending from the compartment (1),
(e) whereby the two spouts (3) being arranged for substantially concurrent pouring of the liquid to a receptacle, and
(f) wherein the compartment (1) is undivided.

Claim	Features	D1	D2
1	Claim 1 A pouring vessel consisting essentially of	✓	✓
	(a) a compartment for liquids (1),	✓	✓
	(b) a handle (2),	✓	✓
	(c) a lid, and	✓	✓
	(d) two spouts (3) extending from the compartment (1),		✓
	(e) whereby the two spouts (3) being arranged for substantially concurrent pouring of the liquid to a receptacle, and		
	(f) wherein the compartment (1) is undivided.	✓	(Compartment is partitioned, two different tea leaves brewed- Figure 2)

If none of the documents discloses all the features of the claim, the invention as recited in the claim is new.

Therefore, it is NOVEL

EXAMPLE GENERIC VS SPECIFIC

Generic vs Specific disclosure

- A generic disclosure does not take away the novelty of any specific example falling within the terms of that disclosure.

but,

- A specific disclosure does take away the novelty of a generic claim embracing that disclosure.

Prior Art	Application	Novelty
1. speaker	1. audio output means	x
2. audio output means	2. sound alarm	√
3. wire connectivity	3. wireless connectivity	√ (equivalents)
4. wireless connectivity	4. wire connectivity	

PATENTABLE INVENTIONS Requirements

INVENTIVE STEP

The technical solution must be a new development or an improvement of an existing technology that would NOT have been OBVIOUS to someone working in your area of specialty.

- An invention involves an inventive step, if having regard to prior art, it is not obvious to a person skilled in the art.
- The technical solution must go beyond the normal progress of technology or should not follow logically from the prior art
- If the person skilled in the ark has to exercise undue experimentation to understand the effect brought by the invention

Who are these Persons Skilled in the Art?

- Fictional person with no inventive ability
- Aware of common general knowledge in specific art
- Has access to everything disclosed as the state of the art
- Can observe developments in related technical field

Assessing INVENTIVE STEP

Step 1: Determining the Closes Prior Art	D2 (Prior Art 2)
Step 2: Establishing the technical problem to be solved	Common features between D2 and the claimed teapot (a) a compartment for liquids (b) a handle (c) a lid (f) two spouts
	Differences over D2: Particular arrangement of the spouts - compartment not partitioned
	Technical effect of the invention: The time needed to fill multiple cups with the same brew is reduced
	Objective problem to solve: How to modify the teapot of D2 to reduce the time needed to fill multiple cups with the same brew

Assessing INVENTIVE STEP

Step 3: Considering whether or not the claimed invention, starting from the closest prior art and the technical problem, would have been obvious to the skilled person.	▪ Would the PSA modify the teapot in D2 by re-arranging the two spouts such that concurrent pouring is possible? ▪ From the teaching in D1, would he be prompted to eliminate the partition of the compartment so that one kind of liquid is poured as also known in conventional teapots? ▪ Would the PSA employ undue experimentation in arriving at the features of the invention? ▪ Does the claimed teapot present an unexpected or non-obvious advance over the prior art as a whole?

TEST OF INVENTIVE STEP

Prior art 1

A cellular phone which body is made with magnesium

+

Prior art 2

A portable music player which body is made with aluminum. We adopt aluminum because magnesium has a problem in cooling performance.

Claimed invention

A cellular phone which body is made with aluminum

Is the NEW Invention Obvious?

PATENTABLE INVENTIONS Requirement

INDUSTRIAL APPLICABILITY

The technical solutions must work and can be developed or manufactured.

An invention that can be PRODUCED and USED in any industry shall be industrially applicable.

Includes all manufacturing, extracting and processing activities of enterprises that were carried out continuously, independently and for commercial gain. "Industry" need not however have been conducted for profit – and a product which was shown to be useful to cure a rare disease could be considered capable of industrial application even if it had never been intended for use in trade at all.

PATENTABLE INVENTIONS (RA 8293 SEC. 21)

1. A PRODUCT, such as a machine, a device, an article of manufacture, a composition of matter, a microorganism

2. A PROCESS, such as a method of use, a method of manufacturing, a non-biological process, a microbiological process

PATENTABLE INVENTIONS (RA 8293 SEC. 21)

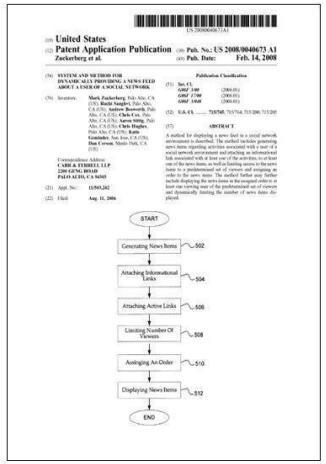
3. COMPUTER-RELATED inventions, invention involves a computer, computer network or other programmable apparatus, with features realized wholly or partly by means of a computer program; and

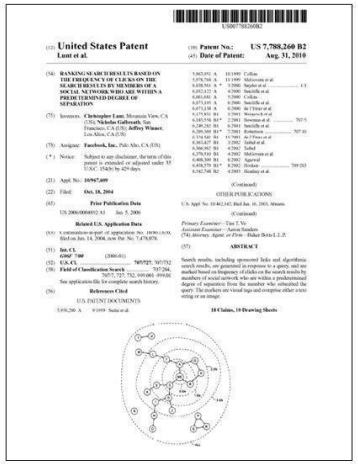
waze

OUTSMARTING TRAFFIC, TOGETHER

Grab

Facebook's News Feed and Search Ranking Patents



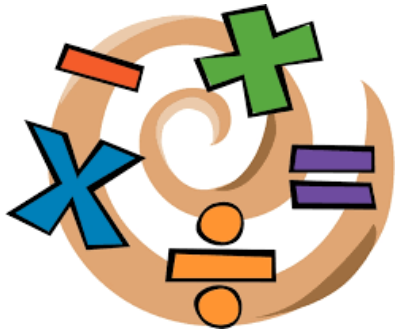


Non-patentable subject matter (Sec. 22)

Discoveries, scientific theories

Schemes, rules, and methods of performing mental acts and playing games or doing business, and programs for computers

Mathematical methods



Non-patentable subject matter

Methods for treatment of the human or animal body

Aesthetic creations

Plant varieties or animal breeds or essentially biological process for the production of plants and animals.

Non-patentable subject matter

Anything which is contrary to public order or morality.

THANK YOU FOR LISTENING!

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